

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

**COMPLAINANTS’ RESPONSE TO RESPONDENTS MOTION FOR EXTENSION OF
TIME AND ENLARGEMENT OF PAGE LIMITS**

Pursuant to Rules 69, 71, and 227, of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainants, through their Counsel, Marcus A. Nussbaum, Esq. respectfully submit this response to respondents’ motion for an extension of both the time and page limits otherwise applicable to their Reply to Exceptions.

ARGUMENT

Contrary to the statement made in the cover email to the Office of the Secretary which accompanied respondents’ motion to which this responds, complainants had not previously consented to respondents’ application. While Mr. Jeffrey’s associate, Carolyn Lowry explains in her cover email that “...About a month or so ago, Complainants’ Counsel said he would

consent...”, Mr. Jeffrey is well aware that complainants reserved on the issue of deciding whether to consent or not pending review of respondents’ motion. A copy of the email chain between the parties with respect to this issue is annexed hereto as Appendix “1”.

Respondents’ Request for an Extension of Time

The Commission is respectfully asked to note that respondents’ instant application is a continuation of the “kabuki dance” that has been ongoing between Mr. Jeffrey and respondents since November of 2016 on the issue of whether or not Jeffrey will continue to represent them. While Mr. Jeffery explains that he has “reached an arrangement” with his clients, he does not confirm that he has been or will be paid, leaving open the possibility that he will not withdraw his motion to be relieved as counsel, and improperly placing the burden on the Commission to now decide the instant application based upon a hypothetical situation.

If the application is granted, there is no guarantee that Mr. Jeffrey will remain as counsel. By virtue of his offer to the Commission to withdraw his motion to be relieved as counsel: (1) upon receipt of payment from respondents; and (2) if the Commission grants the instant application, Mr. Jeffrey also inappropriately places the burden upon the Commission to render a decision based upon a hypothetical situation and to further be the deciding factor on whether or not Jeffrey will continue to represent his clients. In Jeffrey’s own words, “enough is enough” and it is respectfully submitted that the application should be denied due to Jeffery’s failure to take a position, one way or the other, with respect to the continued representation of his clients.

The Commission is further respectfully asked to note that Complainants do consent to a limited extension of time for the only reason proffered by Mr. Jeffrey which warrants an extension and which arises out of a religious excuse, to wit: the unveiling of his father’s grave. The balance of the reasons proffered in support of respondents’ request amount to nothing more than Mr. Jeffrey explaining that he is too busy to work on the instant matter and that he has other priorities.

Nixon Peabody LLP is a large law firm with over five hundred attorneys, and the claim that there is no one else available to handle the representation of the respondents falls short of the requisite good cause needed for granting an extension of time. If Mr. Jeffery is too busy, he should not take on the work.

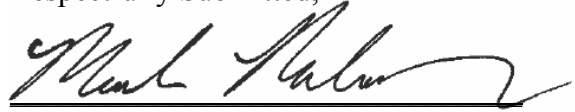
Respondents' Request for an Increase of the Page Limit for their Response to Exceptions

It is respectfully submitted that other than claiming that 'fundamental fairness' requires that respondents be granted an increase in the page limit for their response to complainants' Exceptions to the Presiding Officer's Initial Decision, respondents have failed to explain how or in what way the additional pages are needed. Will respondents require the additional room to explain to the Commission how the shipping documents provided by respondents to various Federal Export Control Authorities allegedly do not need to match the shipping documents provided to the Commission during the course of these proceedings? Will they explain their failure to fulfill their legal obligations to identify the true and lawful parties to the shipping transactions at issue, such as the ultimate consignee and intermediate consignee? Will they use the page extension to address the issue of their alleged fraud upon the Commission by having provided one set of shipping documents to Federal Export Control authorities and a different set to the Commission during the course of these proceedings? To the extent that these questions remain unanswered, it is respectfully submitted that respondents have failed to justify their request for an increase in the page limits.

WHEREFORE, it is respectfully requested that respondents' application for an extension of time to respond to complainants Exceptions be denied as well as their request for an increase in the page limit to their response to complainants' Exceptions, or in the alternative, that a limited extension of time be granted for the religious reasons set forth herein, along with such other and further relief as the Commission may deem just and proper under the circumstances.

Dated: May 22, 2017
Brooklyn, NY

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

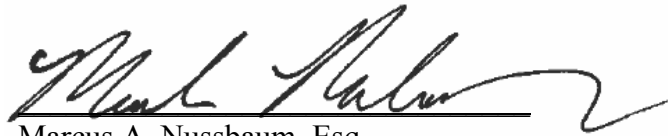
Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' RESPONSE TO RESPONDENTS MOTION FOR EXTENSION OF TIME AND ENLARGEMENT OF PAGE LIMITS** upon Respondents' Counsel at the following address:

Nixon Peabody LLP
Attn: Eric C. Jeffrey, Esq.
799 9th Street NW, Suite 500
Washington, DC 20001-4501

by first class mail, postage prepaid, and via email (ejeffrey@nixonpeabody.com).

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', is written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

Dated: Brooklyn, New York
May 22, 2017

APPENDIX “1”

Marcus A. Nussbaum

From: Jeffrey, Eric <ejeffrey@nixonpeabody.com>
Sent: Wednesday, March 29, 2017 1:13 PM
To: Marcus Nussbaum
Subject: Re: Docket no. 15-11 & 1953(l)

Dear Mr. Nussbaum

Thanks. I will note your position if I request an extension.

Best regards.

Eric

Sent from my iPhone

On Mar 29, 2017, at 9:46 AM, Marcus Nussbaum <marcus.nussbaum@gmail.com> wrote:

Dear Mr. Jeffrey,

Thank you for your response. I will note respondents' stated desire to reserve until reviewing the motion papers.

On the issue of an extension of time for respondents' reply per your previous email, I also note that complainants would likely consent to an extension if the reply is going to be filed by you, however, complainants would also rather reserve on that decision until reviewing respondents' application for an extension.

Regards,

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On Tue, Mar 28, 2017 at 6:57 PM, Jeffrey, Eric <ejeffrey@nixonpeabody.com> wrote:

Dear Mr. Nussbaum

1. Under the circumstances, I suggest you tell the Commission that we conferred, but Respondents decided to review the filed motion before taking a position.
2. You are quite right in pointing out the possibility that I may not be representing Respondents in connection with the Reply. At this point, I can only act on the assumption that I will remain as counsel. If it turns out otherwise, I expect a longer extension may be required.

Best regards.

Eric

Sent from my iPhone

On Mar 28, 2017, at 5:31 PM, Marcus Nussbaum <marcus.nussbaum@gmail.com> wrote:

Dear Mr. Jeffrey,

With respect to your first question, while I do not intend to seek any further extensions, I cannot guarantee that a family emergency or medical emergency would require another application for an extension, at which time I would present the Secretary with documentation in support of such request for *in camera* review.

With respect to your second question, I ask (without kidding) if this is a hypothetical question in that it is unclear as to whether or not you will remain as counsel after April 17, 2017. The issue is to whom the extension of time for a response to Exceptions would be given. Would it be you, Mr. Doyle, Mr. Werner, or someone else?

Regards,

Marcus A. Nussbaum, Esq.
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On Tue, Mar 28, 2017 at 4:52 PM, Jeffrey, Eric <ejeffrey@nixonpeabody.com> wrote:

Dear Mr. Nussbaum

Two questions and a comment.

1. If Respondents were to consent to the proposed extension, would you agree to present it as the final extension for Complainants (on this filing)?
2. Would you agree to consent being contingent upon an extension for Respondents' Reply? I will be out of town (mostly out of the country), for most of the middle of May, so would need until around June 21 to respond, before I leave town again.

Best regards,

Eric

<image001.jpg>

Eric C Jeffrey

Counsel

ejeffrey@nixonpeabody.com

T [202-585-8215](tel:202-585-8215) | C [703-919-3374](tel:703-919-3374) | F [855-782-6662](tel:855-782-6662)

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From: Marcus Nussbaum [mailto:marcus.nussbaum@gmail.com]

Sent: Tuesday, March 28, 2017 4:33 PM

To: Jeffrey, Eric

Subject: Docket no. 15-11 & 1953(I)

Dear Mr. Jeffrey,

Please be advised that I intend to seek an additional sixteen day extension of time to file the Petition to Reopen the Proceedings and/or Exceptions, up to and including May 3, 2017.

The application is based upon a family matter that had arisen upon my return to New York, as well scheduling conflicts arising out of both the Passover and Easter holidays.

I will be filing the motion tomorrow morning and ask that you kindly note your consent or objection to same at your earliest convenience.

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Tel: [888-426-4370](tel:888-426-4370)
Fax: [347-572-0439](tel:347-572-0439)

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